

EMPIRICAL STUDIES

Delegating Digital Rights: Empirical Evidence and Policy Pathways for Effective Data Access

Adamu Adamu Habu¹, Ian Miguel¹ and Simon Dobson¹

¹School of Computer Science, University of St Andrews, Jack Cole Building, North Haugh, St Andrews, KY16 9SX, Scotland, United Kingdom.

Keywords: Digital rights, Delegation, Subject access requests, CCTV

MSC Codes: *Primary* – CODE1; *Secondary* – CODE2, CODE3

Abstract

Digital rights promise individuals meaningful control over their personal data, yet the day-to-day exercise of these rights often falters in organisational practice. This paper evaluates delegation—authorising a knowledgeable intermediary to act on a person’s behalf—as a practical route to subject access for closed-circuit television (CCTV) data. Using a controlled field design across five UK cities, we submitted 85 standardised delegated requests to public- and private-sector data controllers. To minimise burden and isolate organisational stance, requests asked about willingness to disclose and required procedures rather than seeking footage. Overall, 58.8% of data controllers indicated acceptance of delegation in principle, 36.5% resulted in failure through rejection, non-response, referral, or data loss, and four were partial successes where acceptance arrived after footage had been overwritten. Qualitative content analysis of correspondence surfaced three recurring frictions: inconsistent and sometimes excessive identity verification; procedural safeguards that collide with short retention periods; and uneven organisational engagement, including mismatches between front-line staff and central privacy teams. We argue that the gap between legal entitlement and practical realisation reflects weaknesses in the operational layer of rights. The paper proposes four targeted interventions: a controller-agnostic letter-of-authority template, risk-tiered verification baselines, a preservation-on-intent duty for time-critical media, and formal recognition of trusted intermediaries. These steps would make delegated access more predictable, reduce burden for individuals and controllers, and enable rights-based audits at scale. The findings generalise beyond CCTV: as data-driven and AI-enabled systems proliferate, effective delegation will be essential to maintain meaningful access, accountability, and public trust.

Policy Significant Statement

Delegation—letting a trusted intermediary submit data access requests—could make digital rights workable for people facing complex processes. In a field study across five UK cities, we sent 85 delegated CCTV access requests to organisations (data controllers). While 58.8% accepted delegation in principle, 36.5% failed through rejection, non-response, referral, or data loss; late replies often arrived after footage was overwritten. Correspondence shows three policy-relevant frictions: inconsistent identity checks, safeguards that collide with short retention periods, and gaps between front-line staff and privacy teams. We propose four measures for regulators and data controllers: a data controller-agnostic letter-of-authority template, risk-tiered verification baselines, a preservation-on-intent duty for time-critical media, and formal recognition of trusted intermediaries to support scalable audits and equitable access.

Contents

1	Introduction	2
2	Delegation as a mechanism for exercising digital rights	3
3	Methodology	4
3.1	Ethical considerations	4
3.2	Research case study	5
3.3	Field study and experimental setup	5
3.3.1	Sending requests	5
3.3.2	Post-request process	6
3.4	Data analysis	8
4	Findings	8
4.1	Experience with data controllers	8
4.1.1	On-site engagement	8
4.1.2	Outcomes of delegation requests	8
4.2	Email analysis	10
4.2.1	Access control and verification	10
4.2.2	Procedural safeguards and limitations	12
4.2.3	Organisational engagement and accountability	13
5	Discussion	14
6	Limitations and future work	16
7	Conclusion	17
A	Study materials	19
A.1	Delegated data subject request template	19
A.2	Reminder delegated data subject requests template	19
A.3	Debrief - 1	20
A.4	Debrief - 2	20

1. Introduction

Rights relating to personal data have become an important component of contemporary approaches to digital governance. For example, the European General Data Protection Regulation (GDPR) [12] and the Canadian Personal Information Protection and Electronic Documents Act (PIPEDA) [14], grant individuals identified by data (data subjects) a set of data subject rights intended to give meaningful control over the collection and use of their personal data by companies (data controllers). The right of access (GDPR Art. 15 [12, Art 15]), for example, entitles individuals to obtain a copy of their data and information about its processing. In practice, exercising such rights typically requires identifying the appropriate data controller, submitting a request through designated channels, and engaging in iterative correspondence until the request is resolved [2]. Yet empirical studies show that translation from legal entitlement to lived experience is uneven, shaped by technical constraints, procedural complexity, and organisational discretion [2, 13, 15, 24].

The special issue that motivates this paper asks whether digital rights are effective, whether their definition requires expansion, and what practical steps can secure understanding and access alongside rapidly evolving, data-intensive systems. Two contemporary dynamics heighten this urgency. First, rights appear to diffuse beyond their original jurisdictions via regulatory spillover and organisational standard-setting (the “Brussels Effect”) [19]. Second, emerging AI ecosystems can amplify opacity and risk, making traditional oversight tools more brittle [5]. Together, these forces place pressure on the operational layer of rights: the concrete processes, artefacts, and organisational practices that determine whether individuals can actually act on their entitlements.

One response gaining traction is delegation: enabling a knowledgeable intermediary (e.g., researcher, advocate, trusted organisation) to exercise rights on behalf of data subjects [1, 13, 16]. Delegation promises lower burden for individuals, more consistent request quality for data controllers, and the possibility of scaling rights-based audits as a research method [1, 15, 16]. For example, the Austrian digital rights organisation *None of Your Business* (noyb) coordinated access requests on behalf of approximately 2,400 data subjects to investigate the effects of an algorithm used by the Austrian credit-scoring agency CRIF [22]. By aggregating delegated requests, the organisation was able to assemble a dataset large enough to support statistically meaningful analysis of the system's behaviour, illustrating how delegation can facilitate collective oversight of data-driven systems. However, its real-world feasibility remains under-evaluated across sectors and contexts, particularly where data are volatile, time-sensitive, or implicate third parties (e.g., audiovisual data with short retention periods and redaction obligations).

This paper contributes an empirical assessment of delegation in a challenging, policy-relevant domain: CCTV subject access. Using a controlled field design across five UK cities, we submitted 85 standardised, delegated requests to public- and private-sector data controllers. To minimise burden and isolate organisational stance, we asked about willingness to disclose and required procedures rather than requesting footage itself. Our analysis combines descriptive outcomes with qualitative content analysis of correspondence, generating themes on (i) access control and verification, (ii) procedural safeguards and limitations, and (iii) organisational engagement and accountability.

We address two research questions aligned with the special issue:

- **RQ1:** How effective are delegated data subject access requests (DSARs) for CCTV in practice?
- **RQ2:** What policy and procedural changes would make delegation a dependable, scalable modality for exercising digital rights?

Our findings show that delegation is legally cognisable yet practically fragile: most data controllers indicated acceptance in principle, but failures and delays were frequent, often colliding with short retention periods. We argue for an expanded operationalisation of existing rights—not new rights per se—via standardised delegation artefacts, risk-proportionate verification, time-critical preservation duties, and explicit recognition of trusted intermediaries. By situating these proposals within observed practices, the paper speaks directly to the special issue's agenda: evaluating effectiveness, clarifying scope, and setting actionable steps to ensure that digital rights are understood, accessed, and protected as data-driven systems evolve [2, 5, 15, 19].

2. Delegation as a mechanism for exercising digital rights

Digital rights are intended to enable individuals to understand, verify, and exercise control over the processing of their personal data [12, 18]. Although these rights are often conceived as a direct interaction between an individual and a data controller [2], their effective exercise may require assistance from third parties [1, 18]. Individuals frequently face legal, technical, linguistic, and practical barriers when engaging with organisations, particularly in contexts involving complex data processing practices or large institutional actors [13, 15, 21, 18]. As a result, they may rely on lawyers, consumer organisations, family members, or specialised intermediaries to exercise rights on their behalf [1, 13, 16].

Although neither the GDPR nor the UK GDPR establishes a detailed procedural framework for delegated requests, regulatory guidance and legal scholarship consistently recognise the legitimacy of representation. Individuals may therefore authorise third parties to exercise rights on their behalf, subject to appropriate verification of that authority and safeguards against unauthorised disclosure [11, 17]. The key question is not whether delegation is permissible, but whether the representative is acting in accordance with the wishes of the individual concerned.

This understanding is consistent with the broader purpose of digital rights. As Mahieu argues, rights such as access should not be viewed solely as personal interactions between individuals and organisations, but as mechanisms that enable individuals to gain knowledge of and exercise control over data processing practices [18]. However, the exercise of these rights often occurs in the presence of substantial informational, technical, and organisational asymmetries between individuals and data controllers [13, 15]. Delegation can help address these asymmetries by enabling individuals to draw on external expertise, resources, and support when engaging with organisations [1, 13, 18].

From this perspective, delegation should not be understood as an exception to the exercise of digital rights, but as a mechanism that supports their practical effectiveness. Requiring individuals to exercise rights exclusively on their own risks transforming procedural requirements into barriers that disproportionately affect those with limited expertise, resources, or capacity [16]. By enabling authorised representatives to act on behalf of individuals, delegation may improve accessibility, reduce practical burdens, and strengthen the ability of individuals to exercise meaningful control over their personal data [1, 18].

Building on this understanding of delegation as a mechanism for enabling the effective exercise of digital rights, we provide an empirical assessment of delegated requests in a challenging and policy-relevant context. We focus on the right of access because it is widely regarded as a gateway right, providing individuals with the information necessary to understand data processing practices and exercise other related rights [21]. Specifically, we examine delegated requests for CCTV footage, a context that prior research has identified as particularly challenging due to the practical, technical, and organisational complexities associated with locating, verifying, and disclosing personal data contained in video recordings [21, 23]. By studying delegation in this setting, we provide insights into how delegated rights requests operate in practice and the extent to which they can help individuals overcome barriers to exercising their rights.

3. Methodology

This study adopts a field experimental approach to examine how delegated access requests are interpreted and operationalised in practice. While the study assesses whether organisations accept or reject delegated requests, its primary objective is not to determine legal compliance in a formal doctrinal sense. Rather, it seeks to understand how access rights are enacted within organisational settings and how legal requirements are translated into everyday practices, procedures, and decisions.

Our approach is informed by Law and Society scholarship, particularly Edelman's work on legal endogeneity, which highlights how organisations actively interpret and operationalise legal requirements rather than merely implementing them as written [8, 9, 10]. From this perspective, the meaning of legal rights is shaped not only by legislation and regulatory guidance, but also by organisational routines, professional judgments, and institutional constraints. Viewed through this lens, delegated access requests function as empirical probes into how organisations understand, interpret, and enact access rights in practice. This approach allows us to examine the gap between formal legal entitlements and their practical realisation, complementing doctrinal analyses of delegation and access rights.

The remainder of this section outlines the ethical risks associated with the study and the measures taken to address them. It then describes the case study, experimental design, data collection procedures, and analytical approach.

3.1. Ethical considerations

This study did not directly involve or affect individuals, other than contributing to a better understanding of how digital rights are exercised in practice. Ethical risks were carefully managed to ensure minimal

impact on participants and organisations. Because delegating real data subject rights could raise concerns about potential exploitation, the study used a controlled deception design involving a fictitious individual.

A further ethical consideration concerned the burden on data controllers, particularly given the resource demands of processing CCTV requests. To reduce this, no actual footage was requested. Instead, the study asked whether data controllers would consider releasing such data under delegation, what documentation they would require, and what procedures would apply. To avoid biasing responses, data controllers were not explicitly informed in advance that they were participating in a research study, requests were sent from university-affiliated email addresses and identified the sender as a researcher acting on behalf of a data subject. This meant informed consent was deferred; however, risks were mitigated through several safeguards: no real individuals were involved, no personal data were accessed, the researchers' professional identities were disclosed, and organisational burden was kept minimal.

Following data collection, contacted organisations received a debrief explaining the study's aims and ethical rationale. This transparency allowed organisations to understand the academic purpose of the exercise. The study protocol was reviewed and approved by the relevant institutional ethics committee, ensuring compliance with established research ethics standards.

3.2. Research case study

Building on the work of Spiller, who employed subject access requests to critically examine the management of urban CCTV data in an English city [23], we adopted and extended this methodological approach within our evaluation study. Spiller's research drew on the personal experience of submitting 17 subject access requests for CCTV footage, using this as a lens to interrogate how urban surveillance data is managed, accessed, and governed in the UK [23].

In our study, we adapted Spiller's approach as a user story within the evaluation framework, making slight modifications to the locations visited. We expanded the design to five UK (Scottish) cities, submitting 17 requests per city. As this stage of the project was conceptual and exploratory, the research team personally conducted all site visits across the selected cities.

An additional design consideration concerned the need to avoid duplication of data subject requests to the same data controllers across different locations. Submitting multiple, similar subject access requests to the same data controller risked arousing suspicion and potentially undermining the integrity of our methodological approach. For example, CCTV systems in railway stations across all five cities are operated by the same data controller. To mitigate this, railway station CCTV was included in only one of the cities studied.

3.3. Field study and experimental setup

We conducted fieldwork in five UK (Scottish) cities to identify CCTV data controllers operating in both public spaces and private-sector locations (e.g., businesses and shopping centres). The primary aim of these visits was to verify the physical presence of CCTV systems. This was achieved either by asking on-site staff directly or, where clear signage and governance information were available, by relying on posted notices instead. During site visits, data controllers were selected at random to ensure coverage across multiple sectors, following Spiller's approach but with some modifications (see Section 3.2) [23]. The categorisation of data controllers is presented in Table 1.

3.3.1. Sending requests

Data controllers varied in the clarity of their guidance on submitting subject access requests. Our goal was not to evaluate the ease of this process but to test the feasibility of delegated data subject requests. Requests were submitted using contact details provided on CCTV signage or, where absent, by consulting privacy notices on data controllers' websites.

Of the 85 delegated requests, 74 were sent via email (our University email), 4 using a combination of email and online forms, and 7 via online forms alone. The content of the requests was standardised, with only the recipient’s details and the date/time of the request modified. This template, approved by the ethics committee, clearly stated that we were researchers from our University acting on behalf of a **fictitious individual**, “**Musa Edward**”. To minimise burden on data controllers, we did not request the footage itself but instead asked whether they would consider releasing it and, if so, what process or documentation would be required. A sample request letter is provided in the appendix. Data controllers were asked to respond using the contact details supplied in the request email or online form.

Town A	Town B	Town C	Town D	Town E
Supermarket	Postal service	Bus station	Bus station	Museum
Pharmacy / Retail	University	Clothing retailer	University	Bus station
Shopping mall	University	Jewellery retailer	University	Supermarket
Shopping mall	Telecoms	Department store	Hotel	Clothing retailer
University	Hospital	Shopping mall	Government build- ing	Coffee shop
University	Bus company	Department store	Hotel	Clothing retailer
Railway company	Media company	Government build- ing	Electronics	Pub / Restaurant
Clothing retailer	Museum	Bank	Financial institution	Supermarket
Discount retailer	Outdoor retailer	Museum	Bank	Bank
Government build- ing	Department store	University	Telecoms	Outdoor retailer
Bus company	Shopping mall	Hotel	Telecoms	Supermarket
Hospital	Shopping mall	University	Coffee retailer	Stationery / Books
Supermarket	Hotel	Government build- ing	Telecoms	Bank
Discount retailer	Charity	Government build- ing	Sports retailer	Hotel
Healthcare	Clothing retailer	Clothing retailer	Sports retailer	Hospital
Hotel	Car park operator	Hotel	Shopping mall	Supermarket
Visa application ctr	Car park operator	Clothing retailer	Lingerie retailer	Hotel

Table 1. *Anonymised representation of data controllers’ categories used in the study, grouped by town (A–E).*

3.3.2. Post-request process

Following submission, we engaged in further correspondence with some data controllers, typically seeking or providing clarification. For example, in response to one data controller’s message:

“In accordance with GDPR, we will not be able to provide you with someone else’s data. This will have to be obtained by the data subject or consent provided from the data subject.”

We sent a follow-up asking whether explicit consent from the data subject would allow them to release the data.

Where data controllers expressed willingness to release footage and shared their procedures, we concluded the interaction by sending a debriefing letter (Debriefing letter 1, provided in appendix). This letter outlined the aims of the study and highlighted the importance of understanding how delegated requests are processed, particularly from the perspective of data controllers, whose views are often overlooked in prior research [15].

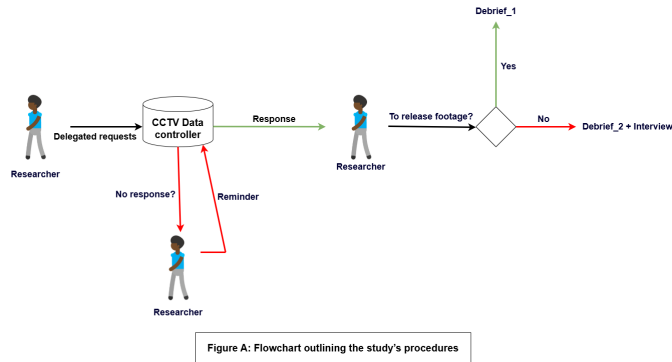


Figure 1. Exploring response pathways: a flowchart of data controller interactions and outcomes.

Data controllers who declined to process the delegated requests were invited to participate in an interview with their data protection officer-DPO (Debrief letter 2, provided in appendix). The interviews aimed to explore their reasoning and to identify possible improvements to the process. Potential interviewees will be provided with a participant information sheet and consent form in advance, clearly stating that participation is voluntary. Despite these efforts, no DPO agreed to participate in an interview.

If a data controller did not respond within 30 days—the statutory timeframe for subject access requests, a reminder email was sent (see appendix). Any responses received after the reminder were handled in the same way as initial responses, either leading to a debriefing or an interview invitation, depending on the outcome. Figure 1 and Table 2 together illustrate the full range of response pathways for the study.

Table 2. Summary of data controller response pathways observed in the delegation compliance study..

Pathway	Description
Request → YES → debriefing-1	The data controller agrees to process the delegated request and provides information or footage, followed by debriefing-1.
Request → NO → debriefing-2 → Interview	The data controller declines to process the request, receives debriefing-2, and agrees to an interview.
Request → Reminder → YES → debriefing-1	No initial response; after a reminder, the data controller agrees and receives debriefing-1.
Request → Reminder → NO → debriefing-2 → Interview	No initial response; after a reminder, the data controller declines the request and then agrees to an interview.
Request → Reminder → No Response	The data controller does not respond to either the initial request or the reminder.
Request → NO → debriefing-2 → Interview declined	The data controller refuses the request, receives debriefing-2, but declines the interview invitation.
Request → Reminder → NO → debriefing-2 → Interview declined	No initial response; after a reminder, the data controller declines the request, receives debriefing-2, but declines the interview.

3.4. Data analysis

We systematically recorded and reflected on our interactions with data controllers, integrating these observations into the overall analysis. In parallel, we conducted a qualitative content analysis of the email correspondence received from data controllers. Responses were collated, and an inductive coding framework was applied to capture recurring concepts, practices, and points of divergence [6]. Through iterative coding and categorisation, we generated higher-level themes that revealed patterns in communication strategies, compliance behaviours, and the framing of digital rights [6]. These themes were synthesised and reported as part of our findings, providing both descriptive insights and analytical depth.

4. Findings

Here, we first describe our experiences engaging with data controllers during the fieldwork stage. We then presents the three thematic categories that emerged from our analysis of delegation request email responses: Access control and verification, Procedural safeguards and limitations, and Organisational engagement and accountability.

4.1. Experience with data controllers

4.1.1. On-site engagement

During field visits, we occasionally spoke with staff at the sites to gather further insight into the operation and governance of the cameras—particularly where signage was absent or incomplete. Interestingly, in four sites staff explicitly told us that only the police could access the footage and that ordinary citizens would not be provided with it. Despite this discouragement, we submitted formal requests to the respective data controllers.

The outcomes varied. One data controller never replied, even after reminders (see a closed door). Another contradicted their staff's statement by confirming willingness to provide the footage, subject to certain documentation (see opening the gate). A third explicitly rejected delegation requests (see a closed door), though their automated reply contained information that conflicted with this position. The final data controller acknowledged the request but required an incident report number from the police before proceeding, partly aligning with their staff's assertion (see opening the gate).

4.1.2. Outcomes of delegation requests

Opening the gate (Success): A total of 50 data controllers (58.82% of the 85 requests) accepted the delegated requests, explicitly indicating that they would provide the requested data upon receipt of the necessary documentation. For the majority of these cases (43/50), the process was relatively straightforward: following submission of the request, controllers promptly confirmed that they would accept delegation, and no further clarification was required. Once this position had been established, we sent a debrief explaining the study's aims and ethical approval (see Figure 1 & Table 2). Responses to the debrief varied. Some data controllers engaged constructively, offering more detailed explanations of their procedures and the conditions under which delegation would be honoured, while others did not respond further.

The remaining seven data controllers required additional correspondence before their position on delegation could be determined. In one instance, for example, a controller initially replied: *"This will have to be obtained by the data subject or consent provided from the data subject."* Because it was unclear whether this constituted a rejection of delegation or a request for evidence of authorisation, we sought clarification by asking: *"We would appreciate some clarification regarding your earlier message, specifically the statement: 'This will have to be obtained by the data subject or consent provided from the data subject.'"* Following this exchange, the controller confirmed that delegation would be accepted

provided that appropriate authorisation was supplied. As with the other successful cases, a debrief was sent only after the controller's position on delegation had been established.

These findings highlight that even among cases classified as successful, the practical experience of exercising delegated digital rights can vary considerably. While some data controllers provided clear and immediate confirmation, others required additional correspondence to clarify their interpretation of delegated requests and the evidence required to support them.

Through a crack in the door (Partial success):

We classified cases where data controllers ultimately accepted our delegated request but failed to respond within the statutory 30-day period as partial successes. In such instances, a reminder was sent to non-responding data controllers. Four data controllers fell into this category, and their replies highlight recurring challenges in the exercise of digital rights.

In the first case, the data controllers claimed not to have received the initial request, despite our records showing an automated acknowledgement of receipt (*"Thank you very much for contacting the DPO team. We will look at your request and will be back in touch shortly."*). By the time they engaged, the retention period for the footage had expired. Nevertheless, they expressed willingness to accommodate delegated requests in the future and provided clarification on the appropriate procedures.

The second data controller requested a telephone discussion to clarify the request, citing internal email issues. During the call, they confirmed that the relevant footage had already been deleted due to retention limits. They also indicated openness to handling delegated requests in the future and explained how such processes should be managed.

The third data controller apologised for delays, attributing them to limited staff capacity and heavy workloads: *"Please accept my apologies for the delay in responding to you; we are a small team, and we are currently working with unprecedented volumes."* They expressed willingness to provide the requested footage in principle, but once again the retention period had expired before their response was issued.

The fourth case involved more extensive correspondence. Initially, the data controller treated our request as a standard subject access request, asking for identification documents and specific details such as the exact date, time, and distinguishing features. As we were still in the process of sending requests, our clarification was delayed. The data controller subsequently sent a reminder highlighting the risk that the footage might be deleted given the short retention period. We later clarified that the request was submitted under delegation, but the data controller did not respond until after the 30-day period had passed. Following our reminder, they apologised for the delay and confirmed that the footage had already been deleted. However, they later provided a clear explanation of their procedures and demonstrated willingness to accommodate delegated requests in future cases.

Partial successes reveal delays, miscommunication, and retention limits; despite willingness to comply, structural barriers hinder effective rights exercise.

A closed door (Failure):

A total of 31 requests (36.47%) were classified as failures. Of these, 13 data controllers explicitly stated they would not accept delegation. For example one data controller mentioned: *"Please be advised that in these circumstances we are only able to release footage of an individual following a request from them. Under the Data Protection Act we cannot release third party footage. Hence please request your student to contact us directly or if the student is underage kindly inform the students parent/guardian to contact us."* Seven of these 13 rejected our invitation for a follow-up interview to discuss their decision in more depth, while five did not respond at all. For instance, one data controller wrote: *"Having discussed this with senior management, we will politely decline the request to take part in this academic research piece."*

Another 13 of the 31 cases involved no response, despite the reminders. We sent reminders to 10 of these data controllers, while the remaining three requests were submitted through online forms that did

not provide a mechanism for subsequent correspondence. In these cases, submitting a follow-up would have required initiating an entirely new request rather than continuing an existing interaction.

Although the absence of follow-up mechanisms may itself represent a barrier to exercising rights, assessing the usability and accessibility of request submission processes was beyond the scope of this study. Our focus was on organisations' responses to delegated requests rather than on the procedural effort required to initiate or track requests. These issues have been explored extensively in prior work, particularly by Norris et al. [21], who examined the practical challenges individuals encounter when exercising their rights.

In four additional cases, we were unable to send a debrief. One data controller explained that they do not record CCTV images, but instead collect another type of data (details omitted here to preserve anonymity). Another organisation denied being the relevant data controller and referred us elsewhere, despite their privacy notice stating otherwise. Their response read: "*... is not accountable for the management of security cameras or CCTV systems. We advise you to get in touch directly with the ... involved for any inquiries or concerns regarding this matter.*" We did not pursue the new data controller in this instance.

Two data controllers stated that the requested data was no longer available due to expired retention periods. For example, one data controller explained: "*I regret to inform you that these emails have initially been quarantined by an email filter and only just received by the organisation. While ... is passionate about ensuring the protection of personal data and supporting individuals in exercising their rights unfortunately CCTV information on the system at the requested location is only retained for 31 days and will no longer be available.*"

Finally, in one referral case, the data controller acknowledged receipt of our request but redirected it to another data controller: "*... has forwarded your DSR to, ..., the Controller who has responsibility for responding to it. They will contact you directly to progress your request. If you have any questions or complaints about ... 's ongoing management of the DSR, please send them to data.protection@*"

We did not proceed further with this referral, and neither did they contacted us, because the second data controller had already been contacted through another case in a different city. Our research design ensured that no single data controller received more than one requests, in order to avoid jeopardising the study's integrity. By the time this response arrived, the second data controller had already replied to the other request.

Across the 31 failed cases, we sent a total of 15 reminders. Of these, 10 elicited no response, two were linked to rejection of delegation (with interview requests also declined), two cited expired retention periods (so no debrief was sent), and one represented the referral case described above.

4.2. Email analysis

4.2.1. Access control and verification

The first theme concerns access control and verification, specifically who is entitled to obtain personal data and how such entitlement is verified. These issues were repeatedly emphasised by data controllers as central to their responsibilities under the GDPR.

Many data controllers required strict proof of identity before releasing CCTV footage. Typically, this involved some forms of identification, such as a photographic document (passport or driving licence) and proof of address (utility bill or bank statement). Some data controllers imposed additional requirements, such as recent photographs or letters bearing a wet signature. One explained: "*to help ensure that we only consider Musa's [fictitious individual] personal data, please, one document must include Musa's name, date of birth and photo, and the other must include Musa's name and current address. Acceptable documents include, but are not limited to, bank or utility statements, birth and marriage certificates, driving licence, NHS medical card and passport.*" The stated aim of such requirements was to ensure

Failure Category	Number of Cases	Notes
Rejection of delegation (with follow-up interview declined)	7	Explicit refusal to accept delegation and declined interview.
Rejection of delegation (no reply to interview request)	5	Explicit refusal to accept delegation but did not reply to interview request.
No response (reminders possible)	10	Ignored requests despite reminders.
No response (no reminders possible)	3	Ignored requests via online forms where reminders were not possible.
Unable to send debrief (different data type)	1	Data controller stated they did not process CCTV but another type of data.
Unable to send debrief (data controller denial/referral)	1	Data controller denied responsibility, referred to another despite privacy notice stating otherwise.
Data unavailable (retention period expired)	2	Data not available due to expired retention periods (31 days).
Referral to another data controller (already contacted elsewhere)	1	Request referred to another data controller already engaged in separate case.
Total	31	Sum of all failure cases.

Table 3. Summary of failure cases.

that only the data subject or an authorised representative with explicit consent could access the requested information.

When requests were made by third parties (delegation), most data controllers consistently required written and signed consent or a formal letter of authority from the data subject. Documentation such as mandates, power of attorney, or direct confirmation from the individual was requested alongside proof of identity. For example, one data controller stated: *“we will need you to provide written authorisation signed by Musa to allow us to liaise with you on their behalf, or they can email us directly from their own email account if they have one.”* Without explicit, verifiable consent, third-party requests were not to be processed. This messaging reflects a strong commitment to safeguarding individuals’ privacy and ensuring compliance with GDPR obligations.

Data controllers also stressed that not all personal data is disclosable under subject access rights. Access may be restricted due to retention limits, the absence of a lawful basis, or the need to protect the rights of third parties. In such cases, exemptions will be clearly explained. For example, one data controller required requesters to specify the lawful basis underpinning their access request: *“to be able to consider your request for information the . . . requires information relating to the lawful basis you are relying on in order to request this data.”* Another made clear that research alone was insufficient justification: *“I would also have to be satisfied that you would be requesting the information with the best interests of the individual—and I suspect that ‘for a research project’ is not sufficient for this purpose.”*

Finally, some data controllers highlighted the legal risks associated with misuse of subject access requests. In particular, they warned that impersonation or coercing another individual to submit the requests unlawfully may constitute a criminal offense under the Data Protection Act 2018. One data controller cautioned: *“A person commits an offence under the Data Protection Act 2018 Section 166 if they unlawfully obtain personal data or information contained in personal data knowingly or recklessly without the consent of the Data Controller. Warning – A person who impersonates or attempts to impersonate another may be guilty of an offence”.*

Data controllers emphasised strict verification of identity, explicit consent for delegation, and lawful bases for disclosure. These safeguards aim to protect data subject and ensure GDPR compliance, but also introduce barriers that may hinder legitimate subject access requests.

4.2.2. Procedural safeguards and limitations

This theme relates to how requests are processed, secured, and constrained by law/technology.

Requests are commonly submitted through standard forms, secure online portals, or email channels, and are often accompanied by detailed contextual information such as dates, times, and locations. In this study, requests were sent via both email and forms/secure portals, as outlined in 3.3.1. In some cases, data controllers responded by providing their own forms to simplify the submission process. Those relying on portals often complemented the process with additional security features, such as CAPTCHA and/or two-factor authentication, with codes sent to the requester's email address. Although the GDPR is technologically neutral, some data controllers justified their reliance on forms as a means of ensuring completeness. As one noted: *"Whilst it is not mandatory to complete the form, it does assist us in providing all the data we hold on you."*

For CCTV data, organisations frequently requested detailed contextual information to locate and confirm relevant footage. This included the exact date and time, location (e.g. building areas, store aisles, train stations, or streets), and incident details. Some data controllers went further, asking for descriptions of the data subject's appearance, actions, or clothing, and in some cases a photograph. One data controller explained: *"To help with any data retrieval, please also provide a description of the data subject and what they were wearing that day, the location within the store and whether the request relates to any specific incidents to help [data controller's name redacted] identify the correct footage."* These requirements highlight the challenges of searching large CCTV archives and the need to narrow requests to ensure accurate identification.

The scope of disclosure is typically limited to the requester's own image, with formats constrained by technical feasibility and third-party privacy concerns. Responses often consist of redacted videos, trimmed clips, or still images, while audio is usually excluded unless captured by body-worn cameras. For instance, one data controller stated: *"it would be permissible for us to provide you with still images of Musa rather than footage as it would only be technically feasible for us to redact those other individuals from the still images."* Such practices underscore the principle of data minimisation, protecting the rights of other individuals captured in the footage.

Organisations stress data minimisation and secure handling of identity documents. Data controllers emphasised that proofs of identity are used solely for verification purposes, handled securely, and either deleted or confidentially destroyed once checks are complete. Submission methods varied: some allowed digital copies via secure forms or email (with optional redaction of non-essential details), while others required in-person verification. For example, one data controller stated: *"To verify your identity you can visit a [data controller's name redacted] or library and provide original copies of two official documents which between them clearly show your name, date of birth and current address. . . . A [data controller's name redacted] officer will check your documents and verify your identity. We do not require copies of your documents."* Once verification was complete, disclosures were delivered via secure channels, such as encrypted email, protected online portals, or encrypted USB drives.

Retention periods further shape the fulfilment of the requests process. Organisations consistently stressed that CCTV footage is stored only for limited periods, typically between 7 and 31 days, after which it is automatically overwritten unless preserved for specific reasons. Requesters are therefore encouraged to submit sufficient details promptly to avoid data loss. Variations exist, for example, 14 days for public space CCTV, but the overriding message is that requests are time sensitive.

Finally, data controllers emphasised statutory deadlines for responding to requests. Responses must generally be provided within one calendar month, though the period only begins once valid ID and adequate details are received. Some organisations reported faster turnaround times (e.g. 72 hours in

straightforward cases), while others allowed extensions of up to three months for complex or voluminous requests. Data controllers also imposed deadlines on requesters: if missing information was not provided within 7–40 days, the request could be closed. Together, these procedural rules illustrate how subject access requests are mediated not only by legal obligations but also by practical, technical, and organisational constraints.

Subject access requests are shaped by a combination of legal, technical, and organisational safeguards. These safeguards determine how requests are submitted, verified, processed, and ultimately fulfilled. They also reflect the balance between facilitating data subjects' rights under the GDPR and protecting the privacy and security of third parties.

4.2.3. Organisational engagement and accountability

This theme highlights organisational engagement and accountability, focusing on how data controllers support requesters, provide escalation mechanisms, clarify responsibilities, and respond to external inquiries about their handling of subject access rights.

Some data controllers provided clear escalation processes for individuals dissatisfied with the handling of their subject access requests. These processes typically explained that requesters could seek an internal review, escalate complaints to the ICO, or pursue their rights through the courts. For example, one data controller stated: *“If you are not satisfied with the information that is provided or the way in which your request is handled, a review can be carried out. Should you wish a review to be conducted please contact.”* In cases where communication challenges arose, some organisations offered apologies for the inconvenience and directed requesters to the ICO for further recourse: *“We apologise for any inconvenience cause by this and would like to inform you that you have the right to escalate the matter to the Information Commissioner’s Office (ICO)”*

Alongside escalation options, many data controllers included offers of assistance and references to external guidance. They encouraged follow-up queries, shared contact details, and linked to ICO resources or official government websites. Some even provided bespoke guidance to help requesters understand the process. As one data controller explained: *“We have also produced a guide on requesting your personal data to help you at the start of this process.”* Such responses emphasise openness, transparency, and a commitment to supporting data subjects throughout the request process.

Not all requests could be fulfilled by the data controllers initially contacted, however. A few data controllers clarified that they were not responsible for the relevant CCTV systems and redirected requesters to the appropriate authority. For instance, one response noted: *“[data controller’s name redacted] is not accountable for the management of security cameras or CCTV systems. We advise you to get in touch directly with the [data controller’s name redacted] involved for any inquiries or concerns regarding this matter.”* This redirection highlights the importance of jurisdictional clarity in determining responsibility for subject access requests.

Following our debrief, in which we disclosed the academic purpose of the research, organisations expressed mixed attitudes toward engagement. Several data controllers were supportive, recognising the value of transparency in research and the importance of our study. One commented: *“We appreciate your transparency in outlining that the request was made solely for academic research, with a focus on understanding how data controllers respond to delegated data subject access requests. It’s helpful to know that your interest lies in the process rather than the footage itself. We recognise the importance of your research and the value it brings to improving the handling of delegated data subject rights. Your considered approach to minimising the impact on our resources is noted and appreciated.”* Other organisations also provided clarifications and detailed explanations of their procedures, sometimes reiterating earlier steps to ensure understanding.

By contrast, some data controllers were sceptical or resistant to academic engagement. A number declined to participate further, remained silent, or questioned the research methodology. For example, one response stated: *“I hope you can understand that we will be declining the opportunity to respond*

further through the interview. You may wish to consider consulting with your own DPO, who could have distributed your questionnaire through the . . . [redacted].” These varied reactions reveal differing organisational attitudes toward external scrutiny and academic collaboration.

Overall, data controllers differ in their level of engagement with requesters. Some provide clear guidance, escalation routes, and helpful resources, while others redirect queries when they are not in charge. Responses to academic engagement were similarly mixed: some welcomed transparency and shared process insights, whereas others expressed scepticism, declined involvement, or did not reply. Taken together, these practices reflect varying degrees of accountability, openness, and willingness to support individuals in exercising their subject access rights.

5. Discussion

This multi-city field experiment demonstrates that delegation is legally cognisable but practically fragile as a means of exercising digital rights. A majority of the data controllers (58.8%) indicated they would accept a delegated CCTV DSARs in principle, yet over a third (36.5%) of requests still failed due to explicit rejection, non-response, or data loss. Even among “successes,” the ease and speed of progress varied widely, often requiring additional clarification or repeated exchanges. These outcomes reveal a persistent gap between formal rights and their realisation in situated organisational practice—a gap shaped by verification choices, retention horizons, and internal governance rather than by legal text alone.

Thematic analysis clarifies where the machinery breaks down. First, organisations varied considerably in how they interpreted and operationalised delegated requests, particularly regarding verification requirements. Some data controllers layering demands (multiple IDs, wet signatures, in-person checks) that may go beyond a risk-proportionate baseline. Second, procedural safeguards intended to protect privacy (tight retention, strict scoping, portal-specific forms) routinely collided with the time sensitivity of the CCTV footage; clocks often “start” only after data controllers deem identity and particulars sufficient, allowing routine overwriting to defeat the request. Third, organisational engagement varied: front-line staff sometimes asserted “police-only” access while central privacy teams later accepted delegation, signalling training and accountability gaps. Together, these mechanisms convert entitlement into contingency, making outcomes dependent on local interpretation and capacity.

Beyond the practical challenges of delegation, our findings reveal substantial variation in how organisations interpret the right of access itself. Several responses suggested that controllers viewed access requests as contingent on demonstrating a particular purpose, lawful basis, or entitlement to obtain the data. In some cases, organisations appeared to assess whether the requester’s reasons for seeking access were sufficiently compelling, while others questioned the legitimacy of delegation because the request originated from a research context.

Such responses sit uneasily with prevailing legal interpretations of the right of access. The right is generally understood to be purpose- or intent-agnostic: individuals are not required to justify why they seek access to their personal data, nor must they demonstrate a particular legal interest in obtaining it. Recent jurisprudence has reinforced this understanding. In *FT v DW* (C-307/22), the Court of Justice of the European Union emphasised that the exercise of access rights does not depend on the data subject providing reasons for the request [7]. Rather, access serves as a foundational mechanism through which individuals can understand and verify the lawfulness of processing and, where appropriate, exercise other rights [21].

The finding that several organisations informed participants that only the police could access CCTV footage provides another example of interpretational divergence. While CCTV footage may, in some circumstances, be disclosed to law enforcement under separate legal powers, the assertion that individuals cannot access footage containing their own personal data is inconsistent with established understandings of access rights. Similar misconceptions have been reported in previous studies of CCTV access

requests, suggesting that such beliefs may be embedded within organisational routines and frontline practices rather than reflecting deliberate non-compliance [21, 23]. Nevertheless, these misconceptions have practical consequences: they may discourage individuals from exercising their rights or lead organisations to reject requests that should instead be assessed on their merits.

Our findings indicate that data controllers place considerable emphasis on verifying delegated requests before agreeing to disclose personal data. Common verification mechanisms included requiring written authorisation from the data subject, correspondence from the data subject's email address, and copies of photographic identification. This approach is broadly consistent with regulatory guidance, which emphasises that controllers should satisfy themselves that a representative is authorised to act on behalf of the data subject before responding to a delegated request (see Section 2).

However, the effectiveness of these verification practices warrants critical scrutiny. Many of the forms of evidence requested by data controllers rely on documents or communications that can be forged, manipulated, or otherwise compromised. For example, authorisation letters and copies of identity documents transmitted via email provide limited guarantees of authenticity, while email-based verification assumes that control of an email account is equivalent to proof of identity or consent. Prior research has demonstrated that adversaries can exploit email-based interactions to gain unauthorised access to personal data, highlighting the weaknesses of relying solely on email correspondence as a means of authentication [20]. At the same time, verification practices that require individuals to disclose additional information, such as copies of identity documents, increase the volume of personal data processed in order to facilitate the exercise of rights. This creates a potential tension with the principles of proportionality and data minimisation, as individuals may be required to disclose more personal data in order to gain access to data already held about them.

These findings point to a broader tension in delegated rights exercises. On the one hand, data controllers have a legitimate obligation to prevent unauthorised disclosure and therefore require evidence that a representative is acting with the data subject's consent. On the other hand, verification mechanisms that provide only limited assurances of authenticity may impose additional burdens on legitimate requesters, require the disclosure of further personal data, and potentially conflict with broader data minimisation objectives, without substantially reducing security risks. The challenge, therefore, is not whether delegated requests should be verified, but how verification can be conducted in a manner that is both secure and proportionate while preserving the accessibility of rights exercise.

Finally, some responses raise broader questions about organisational governance and accountability. For example, one organisation stated that, after discussion with senior management, it would decline participation in the study. While it is not possible to determine the role of the respondent or the internal decision-making process involved, such responses highlight the extent to which rights handling may be shaped by organisational hierarchies and risk-management considerations. If decisions relating to rights requests are routinely escalated to senior management, this may indicate that access rights are treated not merely as compliance obligations but as organisational risks requiring managerial oversight. This observation aligns with broader scholarship showing that the implementation of data protection rights is often mediated by organisational cultures, resource constraints, and institutional priorities rather than determined solely by legal rules [4, 9]. These observations suggest that rights implementation is shaped as much by organisational routines and governance structures as by legal requirements.

Do these findings call for stronger policy and procedural interventions? We argue that they do. Across organisations, we observed substantial variation in how delegation was interpreted, what evidence of authorisation was required, and how requests were processed. While such variation may reflect legitimate concerns about preventing unauthorised disclosure, it also creates uncertainty, increases transaction costs for both requesters and data controllers, and may undermine the practical effectiveness of rights exercise. More broadly, our findings suggest that delegation remains treated as an exceptional case requiring ad hoc decision-making, despite its recognition in regulatory guidance and its importance for enabling individuals to exercise their rights in practice [11, 17].

The recommendations below respond directly to four recurring challenges observed in our data: ambiguity surrounding authorisation, inconsistent verification requirements, time-sensitive deletion of CCTV footage, and the absence of recognised intermediary mechanisms. If delegation is to function as an effective mechanism for rights exercise, it should be treated as a first-class modality rather than an exception. To support this objective, we propose four design moves. First, a data controller-agnostic letter-of-authority (LoA) schema containing a minimum set of elements (e.g., scope, duration, and revocation conditions) could reduce ambiguity and increase legal certainty for both requesters and data controllers. Second, risk-tiered verification procedures could ensure that identity checks remain proportionate to the risks associated with disclosure, limiting excessive requests for identity documentation while preserving safeguards against unauthorised access. Third, a preservation-on-intent duty could require organisations to place a temporary hold on potentially relevant footage once a minimally particularised request (e.g., time and location) has been received, thereby reducing the risk that time-sensitive evidence is deleted before a request can be processed. Fourth, the recognition of trusted intermediaries, such as accredited civil society organisations, legal representatives, or approved research bodies, could help reduce barriers for individuals who lack the resources or expertise to exercise their rights independently [3, 13].

These proposals are grounded in principles that underpin data protection regimes more broadly, including effectiveness, proportionality, accessibility, legal certainty, and data minimisation. Collectively, they aim to reduce unnecessary friction while maintaining appropriate safeguards against unauthorised disclosure. In this sense, the objective is not to weaken verification requirements but to make them more consistent, transparent, and proportionate.

Different actors have distinct roles and incentives in implementing these changes. By policymakers, we refer primarily to data protection regulators, legislators, and standard-setting bodies responsible for issuing guidance and shaping compliance expectations. Their incentive lies in promoting consistent implementation of rights, reducing complaints and disputes, and improving regulatory effectiveness. By organisations, we refer to data controllers that receive and process rights requests, including public authorities, private companies, and third-sector organisations. Their incentive lies in reducing administrative burden, increasing procedural clarity, and lowering the costs associated with handling ambiguous or contested requests. Regulators could support these goals by publishing standard delegation templates, verification baselines, and performance metrics related to rights handling. Organisations, in turn, could adopt standardised delegation procedures, provide clearer guidance to requesters, and train frontline staff to recognise delegated requests appropriately. Such measures would help transform delegation from an ad hoc practice dependent on organisational discretion into a more predictable and accessible mechanism for exercising rights.

Beyond CCTV, the study offers broader lessons for the era of large-scale, data-driven systems. As artificial intelligence models and predictive analytics generate and recombine personal data, individuals will increasingly rely on intermediaries to access, correct, or contest information about them. Without fast, recognised delegation channels, the practical protection of digital rights will erode even as their formal scope expands [5]. Strengthening the operational layer of digital rights—through standardisation, proportionality, and transparency—is therefore essential to ensure that digital rights remain effective, accessible, and resilient in rapidly evolving socio-technical environments.

6. Limitations and future work

This study has several limitations. First, we assessed controllers' willingness to release data under delegation rather than conducting full subject access requests. Although willingness provides a useful indicator of the practical feasibility of delegated requests, it does not capture the procedural, legal, and technical complexities of a complete rights exercise. In practice, delegated requests may involve additional stages, such as identity verification, iterative correspondence, internal review, and disclosure

processes, which were beyond the scope of this study. While this approach minimised organisational burden, it may not fully reflect how delegated requests are handled in practice.

Second, although we designed the study to closely resemble a genuine delegated request, the initial contact explicitly identified the requester as a research institution. This may have influenced organisational behaviour, potentially encouraging greater caution, cooperation, or adherence to legal requirements than would occur in routine interactions. Consequently, the responses observed may not fully represent how organisations would respond to delegated requests in everyday settings.

Third, our focus on CCTV footage requests limits the generalisability of the findings. CCTV data present distinctive challenges, including short retention periods and time-sensitive disclosure processes, which may differ from the organisational practices associated with other categories of personal data.

Finally, our analysis is based solely on organisational responses and does not incorporate the perspectives of DPOs or other compliance professionals. Despite attempts to conduct follow-up interviews, we were unable to secure participation. Such perspectives could have provided valuable insights into how organisations interpret delegated requests and the internal considerations that shape compliance decisions.

Future research should examine delegated rights exercises through full end-to-end requests, extend the analysis to other categories of personal data, and incorporate the perspectives of DPOs and compliance teams. Such work would provide a richer understanding of the organisational factors that shape delegated rights practices and support the development of evidence-based policy and design interventions.

7. Conclusion

This paper examined the feasibility of delegation as a practical mechanism for exercising data subject rights in a high-friction domain: CCTV access. Across five cities and 85 requests, we found that while most data controllers recognised the legitimacy of delegated access in principle, practical obstacles—verification inconsistencies, retention deadlines, and fragmented accountability—frequently undermined success. These findings reveal a persistent gap between the legal promise of digital rights and their operational realisation in everyday organisational settings.

By analysing how data controllers interpret and enact subject access under delegation, the study contributes empirical evidence to ongoing debates about the effectiveness and sufficiency of digital rights. The results demonstrate that rights compliance depends not only on law but on the design of procedural infrastructures and institutional capabilities. To close this gap, we proposed four complementary interventions: standardised delegation artefacts, risk-proportionate verification models, preservation-on-intent duties, and formal recognition of trusted intermediaries. Together, these measures can strengthen the “operational layer” of digital rights and make them more accessible and scalable across sectors.

More broadly, the research shows how empirical work with rights can inform policy design. Delegation offers a methodological bridge between individual experience and systemic governance, enabling rights to serve as instruments of accountability as well as protection. As data-driven and AI-based systems continue to expand, the ability to exercise rights through intermediaries will become essential to maintaining meaningful control and public trust. Strengthening such mechanisms is therefore not only a question of compliance but a condition for the long-term legitimacy of digital governance.

Acknowledgments. We are indebted to Tristan Henderson and Loraine Clarke for their support during the initial phase of this research and for their contributions to its conceptualisation and methodology. We are also grateful to Olexandr Kononov, Convenor of the Ethics Committee at the School of Computer Science, University of St Andrews, and to the other members of the committee—particularly the reviewers of our application—for their guidance in ensuring that the research met the required ethical standards. We extend our sincere gratitude to the 85 data protection teams that participated in our study under conditions of controlled deception; their engagement made this work possible. Finally, we thank the editors, particularly René Mahieu, and the three anonymous reviewers for their thoughtful comments and constructive suggestions, which helped to improve the manuscript.

Funding Statement. This work forms part of the first author's PhD research and was supported by the University of St Andrews School of Computer Science Handsel Scholarship and the Nigerian Government's Petroleum Technology Development Fund (PTDF). The funders had no role in the study design, data collection and analysis, decision to publish, or preparation of the manuscript.

Competing Interests. The authors declare that they have no known competing interests.

Data Availability Statement. The data supporting the findings of this study are available in the Appendix. Data relating to our interactions with data controllers remain confidential.

Ethical Standards. This research was conducted in accordance with all relevant ethical guidelines and complies with the legal requirements of the study country (Scotland, UK).

Author Contributions. contribution are reported using the CRediT taxonomy roles as a guide (<https://credit.niso.org>). Conceptualization: A.A.H; I.M; S.D; T.H; & L.C. Data curation: A.A.H. Formal analysis: A.A.H; I.M; & S.D. Funding acquisition: A.A.H. Investigation: A.A.H; I.M; & S.D. Methodology: A.A.H; I.M; S.D; T.H; & L.C. Project administration: A.A.H. Resources: A.A.H; I.M; & S.D. Supervision: I.M; S.D; T.H; & L.C. Validation: I.M & S.D. Visualisation: A.A.H. Writing original draft: A.A.H. Writing - review & editing: A.A.H; I.M; & S.D. All authors approved the final submitted draft.

References

- [1] Hadi Asghari, Thomas van Biemen, and Martijn Warnier, *Amplifying privacy: Scaling up transparency research through delegated access requests*, 5th Workshop on Technology and Consumer Protection (ConPro '21) (Kauai, HI, USA), IEEE, May 2021.
- [2] J. Ausloos and P. Dewitte, *Shattering one-way mirrors - data subject access rights in practice*, International Data Privacy Law **8** (2018), no. 1, 4–28.
- [3] Jef Ausloos and Michael Veale, *Researching with data rights*, Technology and Regulation **2020** (2021), 136–157.
- [4] Kenneth A. Bamberger and Deirdre K. Mulligan, *Privacy on the books and on the ground*, Stanford Law Review **63** (2010), no. 2, 247–316.
- [5] Reuben Binns and Lilian Edwards, *Chatgpt tells fibs about me: Are data protection and libel adequate tools to protect reputation in the llm era?*, The Oxford Handbook of the Foundations and Regulation of Generative AI (Philipp Hacker, Andreas Engel, Stefan Hammer, and Brent Mittelstadt, eds.), Oxford University Press, Oxford, UK, 2025, Forthcoming.
- [6] Virginia Braun and Victoria Clarke, *Using thematic analysis in psychology*, Qualitative Research in Psychology **3** (2006), no. 2, 77–101.
- [7] Court of Justice of the European Union, *FT v DW (Right of Access to Medical Records)*, 2023, Case C-307/22, ECLI:EU:C:2023:811, Judgment of 26 October 2023.
- [8] Lauren B. Edelman, *Legal ambiguity and symbolic structures: Organizational mediation of civil rights law*, American Journal of Sociology **97** (1992), no. 6, 1531–1576.
- [9] ———, *Working law: Courts, corporations, and symbolic civil rights*, University of Chicago Press, Chicago, 2016.
- [10] Lauren B. Edelman, Christopher Uggen, and Howard S. Erlanger, *The endogeneity of legal regulation: Grievance procedures as rational myth*, American Journal of Sociology **105** (1999), no. 2, 406–454.
- [11] European Data Protection Board, *Guidelines 01/2022 on data subject rights – right of access*, https://www.edpb.europa.eu/system/files/2023-04/edpb_guidelines_202201_data_subject_rights_access_v2_en.pdf, 2023.
- [12] European Union, *Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation)*, Official Journal of the European Union **L119** (2016), 1–88.
- [13] Alexandra Giannopoulou, Jef Ausloos, Sylvie Delacroix, and Heleen Janssen, *Intermediating data rights exercises: the role of legal mandates*, International Data Privacy Law **12** (2022), no. 4, 316–331.
- [14] Government of Canada, *Personal Information Protection and Electronic Documents Act*, Apr. 2000.

- [15] Adamu Adamu Habu and Tristan Henderson, *Data subject rights as a research methodology: A systematic literature review*, Journal of Responsible Technology **16** (2023), 100070.
- [16] ———, *Enhancing citizen participation through data subject right delegation*, Proceedings of IFIP WG 13.8 workshop on HCI for Digital Democracy and Citizen Participation (INTERACT, 2023), August 2023, pp. 1–6.
- [17] Information Commissioner’s Office, *A guide to subject access*.
- [18] René Mahieu, *The right of access to personal data in the eu: A legal and empirical analysis*, Ph.D. thesis, Vrije Universiteit Brussel, 2023.
- [19] René Mahieu, Hadi Asghari, Christopher Parsons, Joris van Hoboken, Masashi Crete-Nishihata, Andrew Hilts, and Siena Anstis, *Measuring the brussels effect through access requests: Has the european general data protection regulation influenced the data protection rights of canadian citizens?*, Journal of Information Policy **11** (2021), no. 1, 301–349.
- [20] M.D. Martino, P. Robyns, W. Weyts, P. Quax, W. Lamotte, and K. Andries, *Personal information leakage by abusing the GDPR “right of access”*, Fifteenth Symposium on Usable Privacy and Security (SOUPS 2019) (USENIX Symposium on Usable Privacy and Security (SOUPS) 2019. August 12–13, 2019 • Santa Clara, CA, USA), USENIX Association, Aug 2019, pp. 371–386.
- [21] Clive Norris, Paul de Hert, Xavier L’Hoiry, and Antonella Galetta (eds.), *The Unaccountable State of Surveillance*, Law, Governance and Technology Series, vol. LGTS, volume 34, Springer Cham, New York, NY, 2017.
- [22] NOYB – European Center for Digital Rights, *Over 40,000 crif queries: Klarna, banks and telecoms entangled in crif network*, September 2025, Following an initiative by noyb, more than 2,400 affected individuals requested and received their data from the credit agency CRIF.
- [23] Keith Spiller, *Experiences of accessing CCTV data: The urban topologies of subject access requests*, Urban Studies **53** (2016), no. 13, 2885–2900.
- [24] Sarah Turner and Leonie Maria Tanczer, *In principle vs in practice: User, expert and policymaker attitudes towards the right to data portability in the internet of things*, Computer Law & Security Review **52** (2024), 105912.

A. Study materials

A.1. Delegated data subject request template

School of Redacted Date Name and address. Dear Sir/Madam,

We are researchers from the School off Redacted at the Redacted, writing on behalf of Musa Edward [a fictional individual], as part of an academic project.

Musa appears to have been recorded by your CCTV system located at [insert location] during the period [insert date and time range]. We would like to facilitate the exercise of Musa’s right of access under applicable data protection laws by seeking a copy of the relevant footage for research purposes.

We would be grateful if you could confirm whether you are willing to release the footage and, if so, outline the process or documentation required to proceed.

Please respond in writing at your earliest convenience. You can contact us by email or post using the details provided below.

Thank you for your time and cooperation.

Kind regards,

A.2. Reminder delegated data subject requests template

School of Redacted Date Name and address. Dear Sir/Madam,

We are researchers from the School off Redacted at the Redacted, writing on behalf of Musa Edward [a fictional individual], as part of an academic project.

On [insert date], we contacted your organization to facilitate Musa Edward's right of access under applicable data protection laws. Specifically, we inquired whether you are willing to release CCTV footage that appears to have captured them, and, if so, requested details on the process or documentation required to proceed.

As 30 days have now passed, we kindly request that you respond at your earliest convenience. If you require further guidance on how to process this request, the Information Commissioner's Office can assist you. They can be reached at 0303 123 1113 or via their website at ico.org.uk.

We appreciate your attention to this matter and thank you for your cooperation.

Kind regards,

A.3. Debrief - 1

School of Redacted Date Name and address. Dear Sir/Madam,

We refer to your recent correspondence and would like to thank you for your response regarding our delegation request.

We wish to clarify that this request was made solely for academic research purposes. Specifically, our research focuses on how data controllers respond to delegated data subject access requests in practice. Our interest lies not in obtaining the footage itself, but in examining the process involved.

We fully acknowledge that handling such requests may place demands on your resources. To minimize any burden, we have disclosed our identity and are only seeking to understand whether you would be willing to release the relevant CCTV footage and, if so, what the required process would be. We believe this limited scope reduces the demands placed on you while still supporting the aims of our research.

Our project seeks to improve the process of delegated data subject rights requests, and your participation as a stakeholder is essential. Your response will contribute to a better understanding of how such requests are processed and supported. While many studies overlook the perspective of data controllers through the data protection officers, we believe your viewpoint is critical and must be included.

We appreciate your role in upholding individuals' data rights and encourage your continued support in helping people exercise their legal entitlements.

If you require any further information, support, or have any concerns, please do not hesitate to contact us or reach out to our Ethics Committee at Redacted.

Thank you again for your time and cooperation.

Kind regards,

A.4. Debrief - 2

School of Redacted Date Name and address. Dear Sir/Madam,

We refer to your recent correspondence and would like to thank you for your response regarding our delegation request.

We wish to clarify that this request was made solely for academic research purposes. Specifically, our research focuses on how data controllers respond to delegated data subject access requests in practice. Our interest lies not in obtaining the footage itself, but in examining the process involved.

We fully understand that such requests may place demands on your resources. To minimize any burden, we have disclosed our identity and are only asking whether you would be willing to release the relevant CCTV footage, and if so, what process would be required. We believe that this limited scope both reduces the demands on your organization and fulfils the objectives of our research.

Our project aims to improve the process of handling delegated data subject rights requests, and your participation as a stakeholder is of great importance. Your response contributes to a more comprehensive understanding of how these requests are managed and supported. While many studies overlook the perspective of data controllers and their data protection officers, we consider your viewpoint essential.

To that end, we would like to invite your Data Protection Officer, or the person responsible for handling data subject access requests within your organization, to participate in a short interview. Participation is voluntary. The purpose is to better understand your motivations and reasoning for declining delegated requests.

If you agree to participate, we will arrange a 20-minute interview at your convenience. Prior to the interview, we will provide a Participant Information Sheet and a Consent Form, and we will be happy to address any questions you may have.

If you require any further information, support, or have any concerns, please do not hesitate to contact us or reach out to our Ethics Committee at **Redacted**.

Thank you once again for your time and cooperation.

Kind regards,